

documents, that if the truth or interpretation of the matter asserted therein is accepted, would prove Plaintiff's claims are precluded. Of those documents, the truth and interpretation of the contents of Exhibits A, B, and E are disputed by Plaintiff. Further, the interpretation and legal effect of Exhibits C and D are also disputed by Plaintiff. These are factual disputes that require evidentiary resolution.

This leaves the motion for judgment on the pleadings to challenge the deficiency of the complaint on its face.

Here, accepting Plaintiff's allegations as true, Plaintiff has alleged facts sufficient to constitute each cause of action. Plaintiff alleges he was employed through October 20, 2023. Plaintiff alleges he was a non-exempt employee entitled to wages, overtime, meal and rest period premiums, unreimbursed expenses, and penalties. Plaintiff alleges Defendant failed to pay all wages, failed to provide compliant meal and rest periods, failed to pay final wages, failed to reimburse business expenses, and engaged in unlawful business practices. As Defendant's evidence rebutting those allegations will not be considered for the motion for judgment on the pleadings as they require evidentiary resolution, those allegations are sufficient at this stage.

Accordingly, Defendant's motion is denied.

26CV-02506 Laura Emery vs Monique Garza

Order to Show Cause re: Restraining Order

Appearance required.

26CV-02887 Petition of: Ruby Mouton

Order to Show Cause Re: Name Change

Appearance required.

26CV-03267 In the Matter of: Inspection of 7238 Almond Ave., Winton, CA, 95388

Application for Inspection Warrant and Abatement Order

The application for inspection warrant and abatement order is GRANTED.

Based on the Declaration of Code Enforcement Officer Reeder, and the attached exhibits thereto, the court finds good cause to grant the application for inspection warrant.

The court will sign the order lodged with the court on June 8, 2026.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Limited Civil
Judge Pro Tem Peter MacLaren
Courtroom 9

627 W. 21st Street, Merced

Wednesday, July 15, 2026
10:00 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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24CV-00700	Wells Fargo Bank, N.A. vs. Jose E Vega
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Status Review of Settlement

Appearance required.

Order to Show Cause Re: Sanctions as to Plaintiff's Attorney Joslyn Hillberg and the Defendant for Failure to Appear at the Status Review Hearing on April 9, 2026

Appearance required.

25CV-01353	Synchrony Bank vs. Laura Fowler
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Court Trial

Appearance required.